Software Services Agreement

Agreement No. SSA-2026-0147 · Effective date: 1 March 2026

Parties

This Software Services Agreement (the **Agreement**) is made between:

Northbridge Analytics Ltd, a company registered in England and Wales, whose registered office is at 14 Kelham Square, Sheffield S3 8RY (the **Client**); and

Calder Software Services Ltd, a company registered in England and Wales, whose registered office is at 2 Wharf Lane, Leeds LS1 4AP (the **Supplier**).

The Client and the Supplier are each a **Party** and together the **Parties**.

Background

The Client wishes to modernise its internal reporting platform, and the Supplier provides software development, hosting and support services. The Parties have agreed that the Supplier will provide those services on the terms of this Agreement.

1. Definitions

1.1 Business Day means a day other than a Saturday, Sunday or public holiday in England.

1.2 Deliverables means the software, documentation and other materials the Supplier produces for the Client under a Statement of Work.

1.3 Services means the development, hosting and support services described in Schedule 1 and in any Statement of Work.

1.4 Statement of Work (**SOW**) means a document signed by both Parties that describes a specific piece of work, its milestones and its price.

1.5 Confidential Information means any information disclosed by one Party to the other that is marked as confidential or would reasonably be considered confidential, including source code, pricing and customer data.

2. Term

2.1 This Agreement starts on the Effective Date and continues for an initial term of **24 months** (the **Initial Term**).

2.2 After the Initial Term, the Agreement renews automatically for successive periods of **12 months**, unless either Party gives at least **90 days'** written notice before the end of the current term that it does not wish to renew.

3. Services

3.1 The Supplier will provide the Services with reasonable skill and care and in accordance with good industry practice.

3.2 The Supplier will assign a named delivery lead to the Client. The Supplier may replace the delivery lead only with the Client's prior written consent, which the Client will not unreasonably withhold.

3.3 Each new piece of work requires a Statement of Work. If a Statement of Work conflicts with this Agreement, this Agreement prevails unless the Statement of Work expressly says otherwise.

3.4 The Client may request changes to a Statement of Work in writing. The Supplier will respond within **5 Business Days** with the impact on price and timetable. No change is binding until both Parties sign it.

4. Fees and Payment

4.1 The Client will pay the fees set out below and in each Statement of Work. All fees are in pounds sterling and exclude VAT, which the Client will pay at the applicable rate.

Item	Fee	Billing
Development (day rate)	£650 per person per day	Monthly in arrears
Hosting and monitoring	£1,800 per month	Monthly in advance
Support (Standard tier)	£2,400 per month	Monthly in advance
Out-of-hours emergency call-out	£180 per hour, minimum 2 hours	Monthly in arrears

4.2 The Supplier will invoice on the last Business Day of each month. The Client will pay each valid invoice within **30 days** of the invoice date.

4.3 If the Client does not pay an undisputed invoice on time, the Supplier may charge interest on the overdue amount at **4% per year above the Bank of England base rate**, from the due date until payment.

4.4 If the Client disputes an invoice in good faith, it must notify the Supplier within **10 Business Days** of receiving it and pay the undisputed part on time.

4.5 The Supplier may increase its day rate and monthly fees once per year, on the anniversary of the Effective Date, by no more than the annual increase in the Consumer Prices Index (CPI), giving at least **60 days'** written notice.

5. Service Levels

5.1 The Supplier will make the hosted platform available **99.9%** of the time in each calendar month, excluding planned maintenance notified at least **48 hours** in advance.

5.2 The Supplier will respond to support requests within these times:

Priority	Example	Response time	Target fix time
P1 – Critical	Platform unavailable for all users	1 hour	8 hours
P2 – High	Major feature down, no workaround	4 hours	2 Business Days
P3 – Normal	Minor fault or workaround available	1 Business Day	10 Business Days
P4 – Low	Question or cosmetic issue	2 Business Days	Next planned release

5.3 If availability falls below 99.9% in a month, the Client is entitled to a service credit of **5%** of that month's hosting fee for each full 0.5% below the target, up to a maximum of **25%** of the monthly hosting fee.

5.4 Service credits are the Client's only financial remedy for missing the availability target, except where the availability falls below **97%** in three consecutive months, in which case clause 11.2(c) also applies.

6. Client Responsibilities

6.1 The Client will provide the Supplier with timely access to its staff, systems and information reasonably needed to deliver the Services.

6.2 The Client will nominate a product owner with authority to approve Deliverables and make decisions about priorities.

6.3 If the Client's delay or failure to meet its responsibilities delays the Supplier, the Supplier is not liable for that delay and may charge for any reasonable additional time spent, at the day rate in clause 4.1.

7. Acceptance

7.1 The Client will test each Deliverable within **10 Business Days** of delivery (the **Acceptance Period**) and either accept it or give written notice of any material defects.

7.2 The Supplier will correct notified defects and redeliver within **10 Business Days**, after which a new Acceptance Period starts.

7.3 A Deliverable is treated as accepted if the Client does not notify any material defect within the Acceptance Period, or if the Client uses it in live operation.

8. Intellectual Property

8.1 On payment in full of the related fees, all intellectual property rights in the Deliverables created specifically for the Client pass to the Client.

8.2 The Supplier keeps ownership of its pre-existing tools, libraries and know-how (**Supplier Materials**). The Supplier grants the Client a non-exclusive, perpetual, royalty-free licence to use Supplier Materials incorporated into the Deliverables, solely for the Client's internal business purposes.

8.3 Open-source components remain subject to their own licences. The Supplier will list all open-source components and their licences in the documentation for each release.

9. Confidentiality

9.1 Each Party will keep the other Party's Confidential Information confidential, use it only to perform this Agreement, and disclose it only to employees and subcontractors who need to know it and are bound by equivalent obligations.

9.2 These obligations do not apply to information that is or becomes public through no fault of the receiving Party, was already lawfully known to it, or must be disclosed by law or a regulator.

9.3 The obligations in this clause continue for **5 years** after this Agreement ends.

10. Data Protection

10.1 Where the Supplier processes personal data on the Client's behalf, the Supplier acts as processor and the Client as controller, and the Parties will comply with the UK GDPR and the Data Protection Act 2018.

10.2 The Supplier will host all Client data in data centres located in the **United Kingdom** and will not transfer personal data outside the UK without the Client's prior written consent.

10.3 The Supplier will notify the Client without undue delay, and in any case within **24 hours**, after becoming aware of a personal data breach affecting Client data.

10.4 On termination, the Supplier will return all Client data in a commonly used format within **30 days** and then securely delete its copies, unless the law requires it to keep them.

11. Termination

11.1 Either Party may terminate this Agreement for convenience after the Initial Term by giving at least **90 days'** written notice.

11.2 Either Party may terminate this Agreement immediately by written notice if the other Party:

(a) commits a material breach that cannot be remedied, or that is not remedied within **30 days** of written notice describing the breach;

(b) becomes insolvent, enters administration or liquidation, or stops carrying on business; or

(c) in the case of termination by the Client, the platform's availability falls below **97%** in three consecutive calendar months.

11.3 The Supplier may suspend the Services if any undisputed invoice remains unpaid **45 days** after its due date, having given at least **10 Business Days'** written warning.

11.4 On termination, the Client will pay for all Services performed up to the termination date, and the Supplier will provide reasonable exit assistance for up to **60 days** at the day rate in clause 4.1.

12. Limitation of Liability

12.1 Nothing in this Agreement limits liability for death or personal injury caused by negligence, for fraud, or for any liability that cannot be limited by law.

12.2 Subject to clause 12.1, neither Party is liable for loss of profits, loss of revenue, loss of goodwill, or any indirect or consequential loss.

12.3 Subject to clause 12.1, each Party's total liability in each contract year is limited to **125% of the fees paid and payable** under this Agreement in that contract year.

12.4 The limit in clause 12.3 does not apply to breaches of clause 9 (Confidentiality) or clause 10 (Data Protection), for which each Party's total liability is limited to **£1,000,000**.

13. Insurance

13.1 During the term and for **2 years** afterwards, the Supplier will maintain professional indemnity insurance of at least **£2,000,000** per claim, and cyber liability insurance of at least **£1,000,000**, and will provide evidence of cover on request.

14. Subcontracting

14.1 The Supplier may not subcontract any part of the Services without the Client's prior written consent. The Supplier remains responsible for the acts and omissions of its subcontractors.

15. Dispute Resolution

15.1 If a dispute arises, the delivery lead and the Client's product owner will first try to resolve it within **10 Business Days**.

15.2 If they cannot, the dispute will be escalated to a director of each Party, who will meet within a further **10 Business Days**.

15.3 If the dispute is still unresolved, the Parties will attempt mediation through the Centre for Effective Dispute Resolution (CEDR) before starting court proceedings, except where urgent injunctive relief is needed.

16. General

16.1 Notices. Notices must be in writing and sent by email to the addresses in Schedule 2 or delivered by hand to the registered office. An email notice is received at 9.00 am on the next Business Day after sending.

16.2 Entire agreement. This Agreement and its Schedules and Statements of Work are the entire agreement between the Parties about its subject matter.

16.3 Governing law and jurisdiction. This Agreement is governed by the law of **England and Wales**, and the courts of England and Wales have exclusive jurisdiction.

Schedule 1 – Services

Development. Design, build and testing of the Client's reporting platform using .NET and PostgreSQL, delivered in two-week sprints with a demo at the end of each sprint.

Hosting. Production and staging environments hosted in UK data centres, with daily backups kept for **35 days** and a recovery point objective (RPO) of **4 hours** and recovery time objective (RTO) of **8 hours**.

Support. Standard support from 8.00 am to 6.00 pm on Business Days through the Supplier's service desk, plus out-of-hours emergency call-out for P1 incidents.

Schedule 2 – Contacts

Role	Client	Supplier
Contract owner	Head of Data, Northbridge Analytics	Director of Delivery, Calder Software
Day-to-day contact	Product owner (named in each SOW)	Delivery lead (named in each SOW)
Notices email	contracts@northbridge.example	legal@calder.example

Signatures

Signed for and on behalf of **Northbridge Analytics Ltd**:
Name: _____ Title: Director Date: _____

Signed for and on behalf of **Calder Software Services Ltd**:
Name: _____ Title: Director Date: _____